

ZimHomes Property Management Agreement

This template is a starting draft for property management services in Zimbabwe. It should be reviewed by a qualified Zimbabwean legal practitioner before live use.

1. Parties

This Property Management Agreement is made on [Agreement Date] between:

Owner: [Owner Full Name / Company Name]

National ID / Registration Number: [ID or Registration Number]

Address: [Owner Address]

Phone: [Owner Phone]

Email: [Owner Email]

and

Manager: ZimHomes [Private Limited / Trading Name]

Registration Number: [Company Registration Number]

Address: [ZimHomes Address]

Phone: [ZimHomes Phone]

Email: [ZimHomes Email]

The Owner appoints ZimHomes as property manager for the property described below.

2. Property

- Property address: [Full Property Address]
- City: [City]
- Suburb / Area: [Suburb]
- Property type: [Room / Cottage / Flat / House / Commercial / Other]
- Ownership / authority document checked: [Title Deed / Lease Authority / Power of Attorney / Other]

The Owner confirms that the Owner has legal authority to appoint ZimHomes to manage the property.

3. Appointment and Term

The appointment starts on [Start Date] and continues until [End Date] or until terminated under this Agreement.

The appointment is: [Exclusive / Non-exclusive].

4. Services

ZimHomes may provide the following services:

1. Advertise the property on ZimHomes and approved marketing channels.

2. Receive and screen tenant inquiries.
3. Arrange viewings.
4. Collect tenant application information.
5. Prepare lease documents for signature.
6. Coordinate handover and inspection checklists.
7. Collect rent, deposits, viewing fees, or other authorised payments.
8. Follow up on late payments.
9. Coordinate maintenance requests and contractor attendance.
10. Conduct periodic inspections, if agreed.
11. Provide owner statements and payment summaries.
12. Mark listings as available, unavailable, featured, or managed.

5. Management Fee

The Owner will pay ZimHomes a management fee equal to [Percentage]% of rent collected each month.

Recommended starting range: 8% to 12% of collected monthly rent.

The management fee is deducted from rent collected before remitting the balance to the Owner, unless the Parties agree otherwise in writing.

6. Additional Fees

The Owner authorises the following additional fees where applicable:

- Listing fee: USD [Amount]
- Featured listing fee: USD [Amount]
- Tenant placement fee: [Amount or Percentage]
- Lease preparation/admin fee: USD [Amount]
- Inspection fee: USD [Amount]
- Maintenance coordination fee: [Amount or Percentage]
- Other approved fee: [Description]

No unlisted fee may be charged unless approved by the Owner in writing.

7. Rent Collection and Owner Payments

ZimHomes will collect rent through approved payment methods, including Paynow-supported channels, bank transfer, mobile money, or other agreed methods.

ZimHomes will remit the Owner's net rental proceeds by [Day] of each month, after deducting approved fees, commissions, maintenance costs, and any agreed charges.

Owner payment details:

- Bank / wallet: [Account Name]
- Account number / mobile number: [Account Details]

- Reference: [Reference]

8. Deposits

Tenant deposits must be recorded clearly and held or transferred according to the arrangement selected below:

- Deposit held by Owner: [Yes / No]
- Deposit held by ZimHomes: [Yes / No]
- Deposit held in separate account: [Yes / No]

Deposit deductions may only be made for lawful and documented reasons such as unpaid rent, unpaid utilities, damage beyond fair wear and tear, missing items, cleaning, or agreed costs.

9. Maintenance Authority

ZimHomes may approve urgent repairs up to USD [Amount] without prior Owner approval where delay may cause damage, safety risk, security risk, or tenant hardship.

For non-urgent repairs above USD [Amount], ZimHomes must obtain Owner approval before work begins.

The Owner remains responsible for funding approved repairs unless the damage is recoverable from the tenant.

10. Owner Obligations

The Owner agrees to:

1. Provide accurate property information.
2. Provide proof of ownership or authority to lease/manage the property.
3. Disclose known defects, disputes, mortgages, restrictions, or legal issues affecting the property.
4. Keep the property reasonably fit for rental occupation.
5. Fund approved repairs and statutory or municipal obligations.
6. Not independently interfere with tenants placed or managed by ZimHomes without notifying ZimHomes.
7. Honour leases and commitments made with the Owner's authority.

11. ZimHomes Obligations

ZimHomes agrees to:

1. Act honestly and with reasonable care.
2. Keep reasonable records of inquiries, leases, payments, maintenance, and owner statements.
3. Communicate material tenant issues to the Owner.
4. Seek Owner approval where required by this Agreement.
5. Avoid unauthorised use of Owner funds.
6. Protect confidential Owner and tenant information.
7. Provide periodic reports as agreed.

12. Tenant Selection

The Owner may choose whether ZimHomes has authority to approve tenants:

- ZimHomes may approve tenants without further Owner consent: [Yes / No]
- Owner approval required before lease signing: [Yes / No]

Tenant screening may include identity information, contact details, employment/income information, references, and previous rental history where available and lawful.

13. Marketing and Listing Authority

The Owner authorises ZimHomes to use property photos, descriptions, location details, pricing, and availability information for advertising.

ZimHomes may add a verified or managed-property badge after internal verification.

The Owner confirms that all uploaded images and information are accurate and may be used for marketing the property.

14. Insurance and Risk

The Owner is responsible for property insurance unless otherwise agreed.

ZimHomes is not liable for loss caused by tenant conduct, criminal activity, market vacancy, municipal service failure, force majeure, or property defects that were not caused by ZimHomes negligence or misconduct.

15. Termination

Either Party may terminate this Agreement by giving [Number] days' written notice.

ZimHomes may terminate immediately if:

- The Owner provided false ownership or authority information.
- The property is unsafe or unlawful to rent.
- The Owner refuses necessary repairs.
- The Owner asks ZimHomes to act unlawfully.
- Fees remain unpaid after written notice.

On termination, the Parties must reconcile rent, deposits, fees, documents, keys, tenant records, and outstanding maintenance matters.

16. Commission Protection

If ZimHomes introduces a tenant, buyer, or occupant who later rents or buys the property directly from the Owner within [Number] months after introduction, the Owner must pay the agreed tenant placement fee, sales commission, or other agreed commission.

17. Confidentiality and Data

The Parties must keep private information confidential, except where disclosure is needed for property management, legal compliance, payment processing, dispute resolution, or tenant placement.

18. Notices

Notices may be sent by hand delivery, email, WhatsApp, SMS, or through the ZimHomes platform, using the contact details in this Agreement.

19. Governing Law and Disputes

This Agreement is governed by the laws of Zimbabwe.

The Parties should first try to resolve disputes through good-faith discussion. If unresolved, the Parties may refer the dispute to mediation, arbitration, a competent court, or another lawful dispute-resolution forum in Zimbabwe.

20. Entire Agreement

This Agreement and its signed annexures form the full agreement between the Parties. Any change must be in writing and signed or otherwise clearly accepted by both Parties.

21. Signatures

Signed by the Owner:

Name: _____

Signature: _____

Date: _____

Signed for ZimHomes:

Name: _____

Capacity: _____

Signature: _____

Date: _____

Witness 1:

Name: _____

Signature: _____

Date: _____

Witness 2:

Name: _____

Signature: _____

Date: _____

Annexure A: Management Setup Checklist

- Proof of ownership / authority received: [Yes / No]
- Owner ID / company documents received: [Yes / No]
- Property photos received: [Yes / No]
- Keys / access devices received: [List]
- Utility account details received: [Yes / No]
- Insurance details received: [Yes / No]
- Preferred contractor list received: [Yes / No]
- Emergency repair limit agreed: USD [Amount]
- Rent collection method confirmed: [Yes / No]
- Owner payout details confirmed: [Yes / No]